

each member of the conspiracy acted in concert and came to a mutual understanding to accomplish a common and unlawful plan, and that one or more of them committed an overt act to further it. [Citation.] It is not enough that the conspiring officers knew of an intended wrongful act, they had to agree – expressly or tacitly – to achieve it.” (*Choate v. County of Orange* (2000) 86 Cal.App.4th 312, 333.) The Court finds no evidence of any such agreement here.

Based on the foregoing, the Court finds that Plaintiffs have not carried their burden of showing a likelihood of prevailing on the merits of their claims against Mimi Leong. Plaintiffs also fail to carry their burden of showing a likelihood of prevailing on the merits of their claims against Kenneth Leong based on giving false information to police and/or assisting with the filing and prosecution of *Leong v. Mazy I and II*

3. Fee Request

Through the Notice of Motion, Moving Defendants indicate that they will “seek their attorney’s fees incurred in connection with this motion by way of a separate attorney’s fee request following the hearing on this motion.” The Court concludes that this statement is not sufficient to raise the issue in connection with the *instant* motion. This does not, however, foreclose Moving Defendants from seeking such fees. (See *Melbostad v. Fisher* (2008) 165 Cal.App.4th 987, 992 [“In general, the party prevailing on a special motion to strike may seek an attorney fees award through three different avenues: simultaneously with litigating the special motion to strike, by a subsequent noticed motion, or as part of a cost memorandum at the conclusion of the litigation”].)

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of James R. Gill

25PR000132

[1] FIRST ACCOUNT AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND ESTATE AND ATTORNEY FOR CONSERVATOR

[2] REVIEW – 1ST YEAR

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial and for an Accounting in two years on September 01, 2028, at 8:30 a.m. in Dept. A. All accounting documents must be filed at least 30 days prior to the hearing. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Duenas, Janelli

26-47375

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on September 01, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Neller, Adam Thomas

26-52441

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on September 01, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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****at 9:30 a.m.****

In The Matter of The Charles and Gwendolyn Olson Estate

26PR000062

REVIEW HEARING

APPEARANCE REQUIRED

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Balcal Construction, Inc. v. Suzanne Giraud et al

23CV001364

DEFENDANTS/CROSSCOMPLAINANTS' MOTION TO COMPEL FURTHER
RESPONSES TO REQUESTS FOR ADMISSIONS, SET TWO AND FORM
INTERROGATORY NO 17.1, SET TWO

TENTATIVE RULING: The motion is DENIED.